

GENERAL CONDITIONS OF OFFENSES IN THE DIGITAL REALM

Awareness. Ethics. Security. Law.



PHISHING
ALERT



DATA BREACH



DATA BREACH



PRIVACY



DATA
PROTECTION



CYBER
SECURITY



1. Privacy and Data Protection

Privacy and data protection refer to protecting a person's personal information from unauthorized access, misuse, or disclosure. Organizations must collect, store, and process data securely.

Why is it important?

- Protects users' personal information.
- Prevents identity theft and financial fraud.
- Builds trust between users and organizations.

Example

You register on an online shopping website and provide your name, phone number, address, and debit card details. If hackers steal this information because the company failed to secure its database, it is a data privacy violation.





Prevention

- Encrypt sensitive data.
- Use strong passwords.
- Enable Multi-Factor Authentication (MFA).
- Follow privacy laws.

2. Digital Ethics

Digital ethics refers to the moral principles and responsible behavior while using computers, the internet, and digital technologies.

Why is it important?

Promotes responsible online behavior. Protects others' rights. Prevents misuse of technology.

Example

student downloads paid software illegally instead of purchasing a license. Although technically possible, it is unethical because it violates copyright laws.



3. Cybersecurity Measures

Cybersecurity measures protect computers, networks, and data from cyberattacks.

- **Phishing**
- **Ransomware**
- **DDoS (Distributed Denial-of-Service) Attack**
- **Data Breaches**
- **Insider Threats**

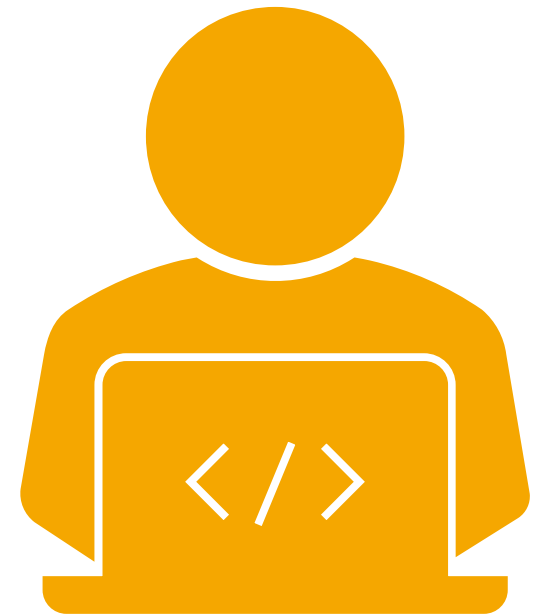
Phishing

Phishing is a cyberattack where an attacker pretends to be a trusted organization to trick users into revealing passwords, OTPs, or banking details.

Real-Time Example

You receive an email saying: "Your SBI account will be blocked. Click here to verify immediately." The link opens a fake banking website that steals your login credentials.

The link opens a fake banking website that steals your login credentials. Prevention Verify the sender's email. Never click suspicious links. Enable MFA. Check website URLs carefully.



Ransomware

Ransomware is malware that encrypts a victim's files and demands money to restore access.

Real-Time Example

A hospital's computers become locked, displaying: "Pay ₹5,00,000 within 72 hours to recover your files." Doctors cannot access patient records until systems are restored from backups.

Prevention

- Regular backups.
- Updated antivirus software.
- Avoid opening suspicious email attachments.
- Keep operating systems updated



DDoS (Distributed Denial-of-Service) Attack

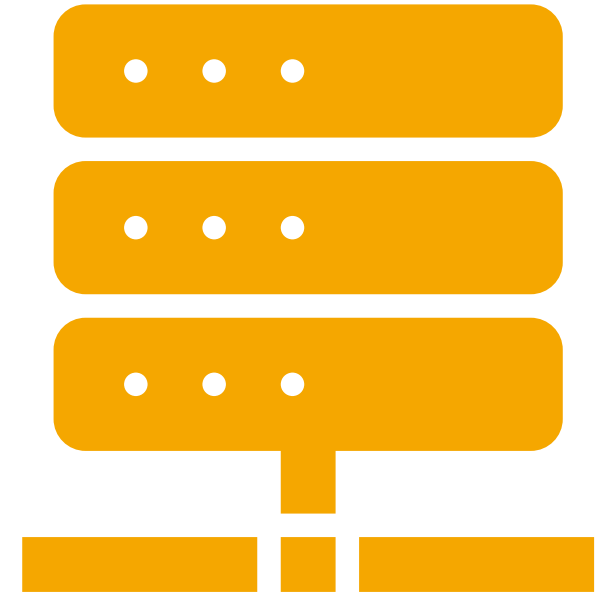
A DDoS attack floods a server or website with excessive traffic, making it unavailable to legitimate users.

Real-Time Example

During an online festival sale, an e-commerce website receives millions of fake requests from compromised devices, causing the website to crash and preventing customers from placing orders.

Prevention

- Firewalls
- Load balancers
- DDoS protection services
- Traffic monitoring



Data Breaches



A data breach occurs when unauthorized individuals gain access to confidential or sensitive information.

Real-Time Example

A company stores customer information without proper security. Hackers steal thousands of customer records, including names, email addresses, and phone numbers, and sell them online.

Prevention

- Encrypt sensitive data.
- Restrict employee access.
- Conduct regular security audits.
- Monitor network activity.

Insider Threats

An insider threat occurs when an employee, contractor, or trusted individual intentionally or accidentally causes a security incident.

Real-Time Example

A dissatisfied employee copies the company's confidential customer database onto a USB drive before resigning and shares it with a competitor.

Prevention

- Role-based access control.
- Employee monitoring.
- Regular security training.
- Disable accounts immediately after employee resignation.



4. Legal Frameworks

A **legal framework** is a set of laws, regulations, and international agreements that define cybercrimes, protect digital information, and specify the penalties for offenders. These laws also guide law enforcement agencies in investigating and prosecuting cybercriminals.

Why is it important?

- Protects individuals and organizations from cybercrime.
- Defines what activities are illegal in cyberspace.
- Provides legal punishments for cybercriminals.
- Supports digital evidence in courts.
- Enables cooperation between countries in investigating international cybercrimes.



India - Information Technology (IT) Act, 2000

The **Information Technology (IT) Act, 2000** is India's primary cyber law. It provides legal recognition to electronic records and digital signatures while addressing cybercrimes such as hacking, identity theft, online fraud, and data breaches.

What does it cover?

- Hacking and unauthorized access
- Identity theft
- Online financial fraud
- Data theft
- Digital signatures
- Electronic governance (e-Governance)
- Cyber terrorism

Real-Time Example

A cybercriminal creates a fake SBI banking website and steals customers' usernames, passwords, and OTPs to transfer money. This is considered **identity theft and online cheating**, and the offender can be prosecuted under **Sections 66C and 66D** of the IT Act, 2000.

USA – Computer Fraud and Abuse Act (CFAA) US

The **Computer Fraud and Abuse Act (CFAA)** is a U.S. federal law that makes it illegal to access computers or computer networks without authorization or beyond authorized access.

What does it cover?

- Computer hacking
- Unauthorized access to systems
- Malware distribution
- Theft of confidential information
- Damaging protected computer systems
- Financial fraud involving computers

Punishments

- Punishments vary depending on the seriousness of the offense and may include:
- Heavy monetary fines.
- Imprisonment ranging from **1 year to 10 years or more** for serious or repeat offenses.

Budapest Convention on Cybercrime

The **Budapest Convention on Cybercrime** is the world's first international treaty aimed at combating cybercrime through cooperation between countries. It establishes common legal standards and procedures for investigating cyber offenses.

Real-Time Example

A hacker located in one country launches a ransomware attack on a bank in another country. Since the attack crosses international borders, law enforcement agencies cooperate under the **Budapest Convention** to identify the attacker, exchange digital evidence, and support prosecution according to the applicable national laws.



THANK YOU